

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

AMAN KAUSHIK, Complainant

v.

SFL WORLDWIDE LLC, Respondent.

DOCKET NO. 26-10

**COMPLAINANT'S MOTION FOR EXTENSION OF TIME FOR INITIAL
DISCLOSURES, JOINT STATUS REPORT, AND CADRS PRELIMINARY
CONFERENCE**

I. INTRODUCTION

Complainant Aman Kaushik, proceeding entirely *pro se*, respectfully moves this Court pursuant to 46 C.F.R. § 502.102 and 46 C.F.R. § 502.10 for an extension of time to complete initial disclosures, to file the Joint Status Report, and to participate in the mandatory CADRS preliminary conference. The grounds for this motion are extraordinary, documented, and uncontested: Complainant is a non-attorney foreign national residing in India, currently recovering from surgery with a hand fracture, unemployed, without legal representation in any of five active parallel legal proceedings, and physically limited in his ability to research, draft, and file legal documents. Good cause for the requested extension

is established on multiple independent grounds, each of which standing alone would support the relief sought.

This motion does not seek to disturb the overall 150-day discovery window or the June 24, 2027 initial decision deadline. Complainant requests only targeted extensions on the front-end deadlines to allow adequate time to comply with the Court's procedural requirements at a level of quality that serves the interests of justice and efficient adjudication.

II. BACKGROUND AND COMPLAINANT'S CIRCUMSTANCES

A. Post-Surgical Recovery and Physical Impairment

Complainant is currently recovering from surgery in Rohtak, Haryana, India, and is experiencing ongoing post-operative pain. Critically, Complainant sustained a **hand fracture** that directly and materially impairs his ability to type, draft, and prepare legal filings. The preparation of discovery disclosures, status reports, motions, and legal research requires sustained typing — an activity that Complainant's current physical condition makes painful and slow. This is not a general hardship claim; it is a specific, documentable physical disability that directly affects the tasks this Court has ordered Complainant to perform within seven and fifteen day windows.

Complainant's medical history in this matter is already documented in Exhibit R of the complaint record: Complainant was involuntarily terminated from Caterpillar Inc. on January 31, 2026, following approximately nine months of disability leave resulting from three surgical procedures and severe recurring post-operative infections. Complainant's recovery is ongoing as of the date of this motion.

B. Pro Se Status with No Legal Training

Complainant is not an attorney. Complainant holds a background in embedded software engineering, not law. The Initial Order issued by this Court on July 1, 2026, runs nine pages and encompasses dense procedural requirements covering: initial disclosure obligations, discovery scheduling, bates numbering and exhibit formatting, confidentiality protocols, motion practice rules, summary decision procedures, citation format requirements, deposition rules, briefing formats, and privilege log obligations.

For a licensed attorney familiar with federal administrative practice, absorbing and applying these requirements is routine. For a non-lawyer with no legal background, understanding each requirement, researching the applicable regulations, identifying how each applies to his specific facts, and then producing compliant filings within seven days of a respondent's answer is not a realistic expectation for a non-lawyer proceeding without legal training. Complainant will require additional time simply to understand the procedural framework before he can begin substantive compliance.

C. Geographic Location and Time Zone Constraints

Complainant resides in Rohtak, Haryana, India — 9.5 hours ahead of Eastern Time (Washington, D.C.). Every court deadline runs on Eastern Time. Every order, filing, and communication from this Court arrives in the middle of Complainant's night. Legal research on U.S. federal administrative law, conducted from India, requires navigating resources primarily designed for domestic U.S. practitioners, often with limited accessibility and without the support infrastructure available to U.S.-based litigants.

Complainant has no access to a U.S. law library, Westlaw, or legal research databases beyond public internet resources.

D. Financial Hardship and Inability to Afford Counsel

As documented in Exhibit R of the complaint record, Complainant is currently unemployed with zero U.S. income from around the past 6 months. Complainant's spouse similarly ceased U.S. employment in September 2025 due to her own surgical procedure. The household subsists solely on Complainant's spouse's modest Indian salary which only covers basic household expenses (~\$630/month income – nearly half of that is spent with rent and utilities alone, leaving the remaining half i.e. only ~\$315 for remaining household expenses like medical, groceries, other needs etc.). Thus, Complainant cannot afford legal representation in this proceeding or in any of the five parallel proceedings currently active. All legal work — research, drafting, filing, and strategy — falls entirely on Complainant alone.

Complainant has now begun actively seeking full-time employment in India and has already had one to two interviews, which further competes with the time and attention required by this litigation.

E. Concurrent Active Legal Proceedings — All Unrepresented

Complainant is the sole unrepresented party managing the following active proceedings simultaneously, all arising from the same underlying shipment dispute:

1. FMC Docket No. 26-10 (this proceeding) — formal adjudication before ALJ Chintella

2. Texas DTPA pre-suit demand — cure deadline approximately August 8, 2026; full DTPA lawsuit of similar page size as the FMC complaint (~125 pages) in preparation to be filed on or around August 9, 2026
3. Texas Attorney General Case No. TCP-034455 — active
4. Illinois Attorney General Cases No. 54715 and No. 54906 — active
5. FMCSA Cases No. 00268621 and No. 00268615 — active
6. Lakeland Insurance Claim No. 7661288000185 — filed June 26, 2026; active negotiation with insurance adjusters regarding repair estimates and item valuations with a hard completion deadline of 75 days

Each of these proceedings generates independent research, drafting, correspondence, deadline obligations, has different procedural rules requirements along with different statutory laws. None has legal representation. No attorney is assisting Complainant in any forum. The Texas DTPA cure deadline of approximately August 8, 2026, falls within the same compressed window as the FMC initial disclosures and Joint Status Report deadlines, requiring Complainant to produce a supplemental DTPA demand letter and simultaneously comply with this Court's front-end procedural requirements.

F. Non-Citizen Status

Complainant is not a United States citizen. Complainant resided in the United States for approximately nine years on student and H-1B visas before returning to India. U.S. federal administrative procedure is not Complainant's native legal framework. Complainant has no background in U.S. civil procedure, administrative law, or maritime law. Every procedural

step requires independent research and verification against eCFR, SRR, Commission rules, and ALJ-specific requirements before Complainant can act with confidence that his filings are compliant.

III. ARGUMENT

A. Good Cause Exists for the Requested Extensions

46 C.F.R. § 502.102 authorizes the presiding officer to extend any deadline for good cause. 46 C.F.R. § 502.10 further provides that any rule in Part 502 may be waived to prevent undue hardship or manifest injustice. The Initial Order itself acknowledges that extension requests will be reviewed for good cause.

Good cause is established here on seven independent grounds: (1) post-surgical recovery with documented hand fracture physically limiting Complainant's ability to type and prepare filings; (2) pro se status with no legal training requiring additional time to understand and comply with complex procedural requirements; (3) geographic location 9.5 time zones from Washington, D.C. with no access to U.S. legal research infrastructure; (4) financial hardship and inability to afford counsel placing the entire litigation burden on one individual; (5) five active parallel proceedings all managed simultaneously without representation; and (6) non-citizen status with no background in U.S. federal administrative law or maritime procedure. (7) Complainant's need to actively seek employment to support his household while also prosecuting this case without counsel.

Any one of these grounds independently supports a finding of good cause. Taken together, they present an overwhelming case for reasonable accommodation. The alternative —

holding Complainant to the same seven and fifteen-day windows applicable to represented parties — would effectively deny Complainant a meaningful opportunity to be heard, contrary to the Commission's mandate to ensure just, speedy, and inexpensive determination of proceedings. 46 C.F.R. § 502.1.

B. The Requested Extensions Do Not Prejudice Respondent

The extensions requested herein do not alter Respondent's answer deadline, do not extend the 150-day discovery window, and do not affect the June 24, 2027 initial decision deadline. Respondent's litigation costs, like those of most represented commercial litigants, are typically driven by attorney work performed rather than by elapsed calendar time. An additional two to three weeks on front-end disclosure and scheduling deadlines causes Respondent no concrete harm and imposes no additional costs.

Conversely, denying the requested extensions would cause Complainant concrete and irreversible harm: filings prepared under impossible time pressure by a non-lawyer with a hand fracture are less likely to be complete, accurate, and useful to the Court. Granting the extensions serves the interests of efficient adjudication by ensuring that Complainant's submissions are substantively meaningful rather than rushed and deficient.

IV. SPECIFIC RELIEF REQUESTED

Complainant respectfully requests that the Court extend the following deadlines as set forth below, calculated from the date of service of Respondent's answer:

1. Initial Disclosures (46 C.F.R. § 502.141):

Default deadline: 7 days after service of Respondent's answer

Requested deadline: 45 days after service of Respondent's answer

Basis: Hand fracture, pro se status, concurrent DTPA-related obligations, and the time required to understand disclosure requirements, Bates-numbering conventions, and compliant exhibit preparation.

2. Joint Status Report with Proposed Schedule (46 C.F.R. § 502.141(h)):

Default deadline: 15 days after service of Respondent's answer

Requested deadline: 45 days after service of Respondent's answer

Basis: Joint Status Report requires coordination with Respondent's counsel, understanding of the proposed discovery schedule framework, and drafting time that Complainant cannot realistically compress into 15 days given his physical condition and concurrent obligations.

3. CADRS Preliminary Conference Contact (46 C.F.R. § 502.64(a)):

Default deadline: 15 days after service of Respondent's answer

Requested deadline: Contact CADRS within 30 days after service of Respondent's answer to schedule the preliminary conference, with the conference itself to be held within 45 days after service of Respondent's answer

Basis: Scheduling across time zones with CADRS staff requires advance coordination; the underlying mediation conference itself can proceed within the extended window without affecting the overall case schedule.

To the extent the Court determines that additional time beyond the specific extensions requested above is warranted in light of Complainant's documented circumstances, Complainant respectfully requests that the Court grant the maximum extension it deems appropriate for each deadline.

Complainant further respectfully requests that the Court take note of Complainant's circumstances in assessing future extension requests, should additional relief become necessary as this proceeding develops.

V. CONCLUSION

For the foregoing reasons, Complainant respectfully requests that this Court grant the requested extensions of time. Complainant is committed to prosecuting this matter diligently and in full compliance with the Court's procedural requirements. The requested extensions are not sought for delay but to ensure that Complainant can participate meaningfully in this proceeding despite extraordinary physical, financial, geographic, and logistical constraints that are entirely outside his control.

Respectfully submitted,

Aman Kaushik

Complainant, Pro Se

Docket No. 26-10

CADRS Case No. 260159

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Rohtak, Haryana, India

Dated: July 14, 2026

CERTIFICATE OF SERVICE

I hereby certify that on July 14, 2026, I served a copy of the foregoing Complainant's Motion for Extension of Time upon the following parties by electronic mail, simultaneously with filing with the Office of the Secretary:

- 1) SFL Worldwide LLC

Respondent

Email: naman@sflworldwide.com

- 2) Office of Administrative Law Judges

Federal Maritime Commission

Email: judges@fmc.gov

- 3) Office of the Secretary

Federal Maritime Commission

Email: secretary@fmc.gov

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